

**PERFORMANCE WORK STATEMENT
FOR
HEAVY METAL PAINT SAMPLING**

1. Scope of Work

a. The Contractor shall provide technical analysis of environmental samples to U.S. Naval Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC) to ensure compliance with applicable regulations to help set forth control measures and health practices for employees involved in protective coating, paint removal, and paint sampling operations.

b. This will help establish SRF-JRMC regulatory requirements that meet the standards in references (a) through (l) to prevent or minimize to as low as reasonable achievable personnel exposure to toxic metals and crystalline silica. The primary metals of concern are lead, hexavalent chromium, and cadmium and any of their derivatives or forms.

2. Enclosures

Encl (1) List of Analytical Items

Encl (2) Chain-of-Custody Record Form

3. References

- (a) 29 CFR Part 1915, Occupational Safety and Health Standards for Shipyard Employment
- (b) 29 CFR Part 1910, Occupational Safety and Health Administration, Department of Labor
- (c) 29 CFR Part 1926, Occupational Safety and Health Administration, Hexavalent Chromium Standards for Construction.
- (d) NAVSHIPPREPFAC M-5100.8 (Series), Safety and Health Program Manual
- (e) OPNAVINST 5100.23 (Series), Navy Safety and Occupational Health Manual
- (f) S9086-VD-STM-010/CH-631, (Series), Preservations of Ships in Service – General
- (g) NAVSEAINST 5100.17 (Series), Occupational Safety and Health Control Manual (OSHCM) for Naval Shipyards
- (h) NAVSHIPPREPFACPI 631-1, Protective Coating/Paint Removal and Sampling for Toxic Metals & Crystalline Silica (TMS)
- (i) Government of Japan (GOJ) Ordinance on Prevention of Lead Poisoning

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- (j) Government of Japan (GOJ) Ordinance on Prevention of Hazards Due to Specified Chemical Substances
- (k) Government of Japan (GOJ) Ordinance on Industrial Safety and Health Regulation
- (l) Government of Japan (GOJ) Ordinance on Pneumoconiosis Law

4. Contractor Requirements

a. The Contractor shall furnish all labor, supervision, tools, materials, equipment, transportation, and other items and services necessary for the analysis of paint/coating samples.

5. Period and Place of Performance

- a. The contract will begin one day after award and run for 12 months
- b. Period of Performance (POP): 27 Apr 2026 through 26 Apr 2027
- c. Place of Performance: Work shall be conducted at the Contractor's laboratory.

6. Technical Requirements

a. Analysis Quantity. At the end of each month, the Government Point of Contact (POC) and the Contractor shall reconcile actual quantities expended and reflect this on the monthly Statement of Delivery (SOD).

b. Regulatory Requirements. The contract requirements shall be performed in accordance with references (a) through (l). The Contractor shall be knowledgeable of and in compliance with the following documents, as well as all applicable U.S. and Government of Japan laws, regulations, and policies to perform required services regarding sampling analysis. In the event that Occupational Safety and Health Administration (OSHA) laws or regulations change during the term of the contract, the contractor shall comply with such laws as they may come into effect.

c. Laboratory Requirements. All services performed under this contract shall be conducted by a qualified laboratory. The Contractor shall submit laboratory certificates from the appropriate agencies to the Government POC indicating that the laboratories are validated and/or certified to conduct the United States Environmental Protection Agency (U.S. EPA) methods and/or the Japanese methods for sampling and environmental analysis. U.S. analytical laboratories must be certified and/or accredited by U.S. EPA or a State Laboratory Certification Program or be American Industrial Hygiene Association (AIHA) accredited to the ISO 17025 standard. Japanese analytical laboratories must be a laboratory registered and/or certified to conduct analyses by the Japanese national, prefectural and/or local government. The lists of approved methods are contained in enclosure (1). In the event the Contractor changes

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laboratories or subcontracts with another laboratory, the Contractor shall submit certifications to the Contracting Officer (KO) prior to use of the laboratory.

7. **Tasks and Deliverables**

a. Sample Collection. SRF-JRMC Shop X71 personnel will collect samples and submit to Code 106.21 personnel.

b. Government Collection. SRF-JRMC personnel from Code 106.21 will collect and submit paint samples for a transportation drop off or by mail to the contractor laboratory for heavy metal analysis.

c. Sample Identification and Protection:

(1) Identification. The Contractor must verify sample labels and Chain-of-Custody forms to prevent sample misidentification. At a minimum, the following information shall be included on the label and corresponding Chain of Custody:

(a) Sample Identification Number

(b) Name of Collector

(c) Date and Time of Collection

(d) Location of Collection

(e) Sample Description

(f) Analyses for Testing

(g) Relinquished by

(h) Contact Information

(i) Activity (if applicable)

d. Packaging. SRF-JRMC Code 106.21 shall ensure all packaging and required forms are correctly labeled and properly filled out. Code 106.21 shall secure required forms in a waterproof bag.

e. Shipping. SRF-JRMC Code 106.21 shall transport or mail all samples to the designated laboratory for analysis.

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8. Sample Analysis

a. Analytical Method. The Contractor shall analyze all samples using methods approved by the Ministry of Environment (MOE) or the U.S. EPA methodology. Proposed analysis methods are provided in enclosure (1), with a listing of analytical items, quantitation limit, and analysis methods.

b. Sample Disposal. Once analysis is complete, the Contractor shall dispose of the samples appropriately.

(1) Sample Replacement. When the Contractor misplaces the provided paint samples or analysis results, the Contractor shall be required to analyze replacement samples and cover the shipping at no extra cost to SRF-JRMC.

(2) Sample Analysis Processing Time. The Contractor shall process and submit reports to SRF-JRMC for samples collected within five to ten working days after the laboratory receives the samples. The Contractor shall process and submit reports to SRF-JRMC personnel for samples collected within the requested turn-around times after the laboratory receives the samples.

(3) Expedited Sample Analysis. Expedited samples may be required throughout the year. These samples are required as a result of unexpected or critical events that occur and need immediate analysis. The Contractor shall expedite processing and submit reports to SRF-JRMC personnel within 24 hours' time from when the laboratory receives the samples.

9. Sample Records and Reporting

a. Chain-of-Custody Record. SRF-JRMC Code 106.21 will complete this form throughout the process of analysis and reporting. This form, enclosure (2), is intended to record and document each stage of the sample's life cycle (i.e., collection, transport, and delivery). Code 106.21 personnel will maintain the hard copy form and provide the contractor with a duplicate copy or electronic version during transfer.

b. Analysis Report. The Contractor shall prepare a written analytical report that contains the results of the analysis performed. The reports shall contain, at a minimum, the following information:

(1) Contractor's Name and Address

(2) Report Number

(3) Report Date

(4) Contract Number

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- (5) Sample Identification Number
- (6) Sample Collection Date
- (7) Analyzed Date (if applicable)
- (8) Analytical Item
- (9) Analytical Test Method Used
- (10) Analytical Result
- (11) Unit
- (12) Applicable Reporting (Quantitation) Limit (or Detection Limit)
- (13) Standard limit for analyst (regulatory level or maximum allowable limit)
- (14) Laboratory guarantee that results are correct and accurate
- (15) Raw Data (upon Government request)
- (16) Complete Chain-of-Custody Record

c. If the original report contains any errors or omits any of the required information, the contractor must resubmit a corrected written report, at no additional charge to SRF-JRMC. The corrected report will be delivered within the same working days of notification or discovery of the error or omission.

d. Report Format. All reports and other submittal documents must be printed on recycled paper, size 8.5 inch x 11 inch, leaving a one (1) inch top, bottom, left and right margin. Text font type must be Times New Roman and/or MS Mincho and font size shall be 12 point.

10. Applicable Documents/Governing References

In addition, requirements of regulations and policies applicable to this contract or order by virtue of clauses contained herein, the Contractor shall, in the performance of this contract or order, also comply with all references applicable to the specific tasks of this Performance Work Statement (PWS), as listed below, including any amendments or subsequent issuance.

11. Special Instructions and Administrative Information

a. Non-Personal Services. This is a non-personal services, performance-based contract. The Contractor bears responsibility to manage its employees and guard against any actions that

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could be characterized as personal services as defined in FAR 37.104, or which convey the perception that personal services are being delivered. No provisions are implied nor provided in this contract for any benefits such as medical care, retirement, or worker's compensation, other than those incorporated through enumerated clauses.

b. Identification of Contractor Personnel and Equipment. In accordance with DFARS 211.106, contractor personnel performing non-personal services on DoD installations or other government facilities shall ensure that they are readily identifiable as contractor employees (including subcontractors and consultants). All contractor employees shall comply with the following at all times:

(1) Telephone Identification. Identify themselves as contractor personnel at the onset of every telephone call made from a government telephone or any other phone if the call is made in support of government-related requirements and activities.

(2) Recorded Messages. Identify themselves as contractor personnel in all recorded messages including those which are heard by callers attempting to contact contractor employees via answering machines or voicemail.

(3) Meetings, Conferences and Events. Identify themselves as contractor personnel at the onset of every meeting, conference or any other gathering attended in support of any government related requirements or activities.

(4) Correspondence. Identify themselves as contractor personnel on any correspondence, documents, or reports accomplished or sent in support of any service provision to SRF-JRMC Code 106.21, including, but not limited to, correspondence sent via the U.S. mail, facsimile, or electronic mail (email) inclusive of out-of-office replies.

c. Hazardous Materials and Safety. The Contractor and its subcontractors shall comply with all applicable laws, including Public Law 91-596 OSHA and DoD Directive 4715.1E, Environmental, Safety, and Occupational Health (ESOH).

d. Privacy Act. Pursuant to FAR clause 52.224-3, as incorporated, DoD requires agency-specific Privacy Act training as prescribed in DoDM 5400.11-R, Department of Defense Privacy Program. DoDM 5400.11-R also prescribes required actions regarding information and privacy, which are applicable to the Contractor and its personnel performing under this contract or order. The regulation may subject the Contractor and/or Contractor's personnel to criminal liability under Title 18, Section 793 and 7908 of the United States Code (USC).

e. Classified information. Any classified work products shall be handled in accordance with DoD Instruction 5220.22-M, National Industrial Security Program. The Contractor's procedures for protecting against unauthorized disclosure of information will not require DoD employees or members of the Armed Forces to relinquish control of their work product, whether classified or not, to the Contractor. The Contractor may also have access to, and be required to

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safeguard, For Official Use Only (FOUO), sensitive, confidential, and/or classified information and material.

f. Allowable Costs. As indicated in FAR 31.205-46 (a) (3) (iv), 31.205-46 (a) (7), and 31.250-46 (b), all costs must be supported by the appropriate documentation and receipts provided to the KO and/or the Contracting Officer Representative (COR).

12. Government POC - TBD

Code 106.2, SRF-JRMC Gas Free Engineering and Industrial Hygiene Division

Code 106.21, SRF-JRMC Industrial Hygiene Branch

Code 1209, SRF-JRMC Waterfront Business Services Division, Class Team Lead

Code 1209, SRF-JRMC Waterfront Business Services Division, Division Head

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List of Analytical Items

Analytical Items	Content Required	Reporting Limit (RL) mg/kg	Analysis Method or Equivalent Method
Lead	0.005% dry weight	20	EPA SW 846 or JPN
Hexavalent Chromium	0.005% dry weight	20	EPA SW 846 or JPN
Cadmium	0.005% dry weight	20	EPA SW 846 or JPN

* Detected: Quantity found in excess of the limit of detection.

Per NSTM S9086-VD-STM-010 (Rev.3), Chapter 631 for:

Cadmium, Chromium (or Hexavalent Chromium), Lead, and Crystalline Silica.

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PAINT BULK SAMPLE ANALYSIS CHAIN OF CUSTODY FORM

U.S. NAVAL SHIP REPAIR FACILITY AND JAPAN REGIONAL MAINTENANCE CENTER YOKOSUKA, JAPAN

Record No.: _____ SRF No.: _____

Contractor takes responsibility for contents of Section (1), (3) and (5) to (16).

The requester takes responsibility for contents of Section (2).

Code 106 takes responsibility for contents of Section (4), (17) and (18).

(1) Chain of Custody

No	Delivered by:	Date	Time	Received by:	Date	Time
1						
2						
3						

(2) Requester

Ship / Hull / Project: _____ Shop / Code No.: _____

Print name: _____ Phone number: _____ E-mail: _____

Remark: _____

(3) Sampler

Number of sample: _____ Sampling date/type (regular or expedite): _____ Company: _____

Print name: _____ Phone number: _____ E-mail: _____

Remark: _____

(4) Code 106 Received by (Print name): _____ Received date: _____

Remark: _____

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Paint Bulk Sample Collection Log

Ship (艦船) No. (5)

Bulk Sampler⁽⁶⁾
(サンプル採取者)

Sampling Date ⁽⁷⁾
(採取日) :

[illegible]